

request is whether there was a disclosure in a particular document. The original objection and supplemental response are non-responsive and evasive.

Request for Admission No. 21: Admit that YOU did not disclose the existence of a leak above the dining room in the HALTEN PROPERTY in Exhibit "1."

Motion to compel further responses is granted. Defendants' answer, based on the statement "Responding Party admits that Exhibit 1 does not contain a disclosure specifically referencing a "leak above the dining room" is inconsistent with the assertion that Defendants "cannot admit or deny the demand as phrased."

The court finds on balance that the Defendants did not act with substantial justification in the controverted Requests for Admissions.

Plaintiff's attorney Gregory P. Wayland set out the calculations for the preparation of both Plaintiff's Motion to Compel Further Responses to Special Interrogatories and its Motion to Compel Further Responses to Requests for Admissions at paragraphs 23-25 of his Declaration in Support of Motion to Compel Discovery Responses filed October 1, 2025. The court finds those calculations to be reasonable given the complexity of both of the motions at issue today.

Taken together with the discussion on sanctions below in Line 18, the court awards monetary sanctions in the total amount of \$4,415.00 for both the Motion to Compel Further Responses to Special Interrogatories and the Motion to Compel Further Responses to Requests for Admissions against Defendants Linda Williams and Compass California II, Inc. pursuant to Code of Civil Procedure section 2030.300. The amount is due and payable immediately.

18. 9:01 AM CASE NUMBER: C23-02669

CASE NAME: ALDVIN SCHAKANOVICH VS. LINDA WILLIAMS

***HEARING ON MOTION FOR DISCOVERY COMPEL COMPASS CALIFORNIA II, INC.'S FURTHER RESPONSES TO SPECIAL INTERROGATORIES, SET THREE (3)**

FILED BY: SCHAKANOVICH, ALDVIN

TENTATIVE RULING

Plaintiff's Motion to Compel Further Responses to Plaintiff's Special Interrogatories, Set Three is rendered moot by the Defendant's verified supplemental response to Special Interrogatory No. 9. Special Interrogatory No. 9 requested the total number of a certain type of transactions that occurred from January 1, 2020 to the present. Defendant represents that it has provided a verified response and provided that number to Plaintiff. Plaintiff acknowledged that the interrogatory has been answered. However, a motion to compel may be heard even if tardy responses are served after the motion is filed. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal. App. 4th, 390, 410-411.

California Rules of Court Rule 3.1348(a) provides that sanctions may be imposed even if the opposing party provides the discovery after the motion is filed. Section 2030.300(d) of the Code of Civil Procedure provides: The court shall impose a monetary sanction under Chapter 7 ... against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.

In support of its request for sanctions, Plaintiff stated:

“Plaintiff seeks monetary sanctions in the amount of \$4,415.00 against Defendants Linda Williams and Compass California II, Inc. pursuant to Code of Civil Procedure sections 2030.300 on the grounds that Defendants have misused the discovery process by failing to provide substantive responses to duly propounded discovery. The requested sanction amount reflects the reasonable attorneys’ fees and costs incurred by Plaintiff in preparing and bringing this Motion.”

The court notes that this exact language appears in both Plaintiff’s Motion to Compel Further Responses to Special Interrogatories and its Motion to Compel Further Responses to Requests for Admission. Section 2023.040 of the CCP provides:

A request for a sanction shall, in the notice of motion, identify every person, party, and attorney against whom the sanction is sought, and specify the type of sanction sought. The notice of motion shall be supported by a memorandum of points and authorities and accompanied by a declaration setting forth facts supporting the amount of any monetary sanction sought.

Plaintiff’s attorney Gregory P. Wayland set out the calculations for the preparation of both Plaintiff’s Motion to Compel Further Responses to Special Interrogatories and its Motion to Compel Further Responses to Requests for Admissions at paragraphs 23-25 of his Declaration in Support of Motion to Compel Discovery Responses filed October 1, 2025. The court finds those calculations to be reasonable given the complexity of both of the motions at issue today.

Defendants have not presented reasons justifying its late response. Defendants originally objected that the demand presented an undue burden given the total number of transactions called for by the interrogatory. Defendants might have described the extent of the burden required to answer the interrogatory and asked for more time to come up with the information that it ultimately provided to Plaintiff. Defendants did not.

Also, the Defendants’ original objections included the standard “overly broad” and “not reasonably calculated to lead to the discovery of admissible evidence. Standing alone, these common objections were not explained or justified. The Defendant’s Opposition to Plaintiff’s Separate Statement articulated a plausible argument supporting the objection that the interrogatory calls for information that is not reasonably calculated to lead to the discovery of admissible evidence: that the Plaintiff’s claims against Compass involve a single property and the number of Compass Concierge transactions nationwide has no bearing on whether Compass properly disclosed conditions at the Plaintiff’s single

property. Defendant should have included that argument in their original objections. It is “too little, too late” to articulate that objection for the first time in the Opposition.

On this record the court cannot find that the Defendants acted with substantial justification.

The award of sanctions will be discussed in the tentative above in Line 17 concerning Plaintiff’s Motion to Compel Further Requests for Admissions.